

21STCV26958 21STCV26958

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-09-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C515%2C09%2F08%2F2026

Source SHA-256: 23edffa32157318019d5e7515158e100a8c69932b412033c52130f432fa0e3cc

Case Number: 21STCV26958 Hearing Date: September 8, 2026 Dept: 515

The Court's tentative is to deny the proposed judgment in favor of Plaintiff submitting a corrected judgment form, for the reasons discussed below:

I. Amount of Complaint

Plaintiff's CIV-100

identifies the amount of complaint as \$158,028.35, but that number is not supported by the Complaint.

Plaintiff requests \$25,000 for the unfair competition claim and an additional \$25,000 for the false imprisonment claim, neither of which request those amounts in the Complaint. Additionally, damages are not available for an unfair competition claim under Business and Professions Code §17200. (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144).

The wage claims are adequately noticed. The complaint pleads the \$172.50 daily entitlement, the six-day week, the January 2020 to April 2021 period, the 30-day waiting time formula, and the wage statement penalty schedule, giving fair warning of an exposure of at least \$84,451, which is more than the \$66,001 in damages and penalties supported by the record. (People ex rel. Lockyer v. Brar (2005) 134 Cal.App.4th 659, 667-668).

II. Unsupported

Figures

Additionally, five figures need reduction on the evidence.

1. The wage statement penalty was claimed at the \$4,000 cap without counting pay periods; 16 monthly periods yield \$1,550 (Lab. Code, § 226, subd. (e)(1)).
2. Interest was computed on penalties as well as wages, but Labor Code section 218.6 reaches unpaid wages only, so the figure is \$29,638 rather than \$34,225.50.
3. Attorney fees of \$50,000 come with no declaration, no rates, and no hours; the Local Rule 3.214 schedule yields \$2,210.02.
4. Costs are allowable as to the \$838.42 in filing fees and \$322.92 in process server fees, but the \$4,571.43 line for court reporter, interpreter, and shipping charges must be broken out before any of it is awarded (Code Civ. Proc., § 1033.5, subds. (a)(1), (4), (b)(3)).
5. The \$55,351.85 "Other" line on the JUD-100 double counts penalties already inside the damages figure.

The amount supported by the records is \$59,276 in wages, \$5,175 in waiting time penalties, \$1,550 in wage statement penalties, \$29,638 in prejudgment interest, \$5,351.85 in discovery sanctions, \$2,210.02 in attorney fees, and \$1,161.34 in costs for a total of \$104,362.21.

If counsel accepts those figures the Court can enter judgment at the hearing; otherwise, a short continuance for a corrected JUD-100, a fee declaration, and a cost itemization would be appropriate.